

BEFORE THE FEDERAL MARITIME COMMISSION

MCS INDUSTRIES, INC.,
Complainant

v.

COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY S.A.,
Respondents.

DOCKET NO. 21-05

**NOTICE OF ISSUANCE OF FORMAL DECISION OF THE
SWISS FEDERAL DEPARTMENT OF JUSTICE AND POLICE
THAT THE HAGUE EVIDENCE CONVENTION PROCEDURES
APPLY TO THIS PROCEEDING AND MUST BE USED**

On October 18, 2022, Respondent MSC Mediterranean Shipping Company SA (“MSC”) advised Your Honor that it had requested the Swiss Federal Department of Justice and Police (FDJP) to authorize MSC to comply with Your Honor’s order to compel discovery, notwithstanding the provisions of Swiss law blocking discovery.

In the October 18 submission, MSC had informed Your Honor of the FDJP’s decision that an authorization under Article 271 of the Swiss Criminal Code could not be granted; the FDJP stated it could not waive enforcement of Article 271 because discovery could be sought by mutual legal assistance as the ordered discovery in this matter was “an act of taking of evidence in a civil and commercial matter,” and “must therefore be made in accordance with the rules of the 1970 Hague Convention.” The FDJP advised that it was preparing a formal decision explaining these conclusions more fully.

That decision issued on November 7, 2022, and MSC received it today. The original and a translation are attached. It is signed by the Swiss Minister of Justice, who heads the FDJP,

Federal Council member Karin Keller-Sutter. It represents the official position of the Swiss government.¹

As outlined in the FDJP's advice relayed in MSC's October 18 submission, the decision concludes that pursuant to a Federal Council decision of June 25, 1997 the Swiss government cannot authorize MSC's compliance, because "no authorization may be granted where mutual assistance is possible." (§6).

Here, "mutual legal assistance under the Hague Convention on the Taking of Evidence Abroad in civil and commercial matter of 18th March 1970 (RS 0.274.132) is open," because "[c]ontrary to the decision of 29th June 2022 of the Geneva Court of First Instance, the case is in fact a civil and commercial matter." (§7). This FMC proceeding concerns "a private law relationship in the form of a contract" and "damages, a typical civil law claim." (*Id.*). Whether the office of the ALJ or the FMC are nominally civil or administrative tribunals is irrelevant, "[w]hat is decisive is the nature of the subject matter of the proceeding." (*Id.*).

Finally the decision states that the "rejection of the request for mutual legal assistance by the Court of First Instance has no material effect (*res judicata*)."

Therefore, a "request for mutual legal assistance may be re-filed in an improved form," i.e. outlining the nature of this proceeding as confirmed by the FDJP's opinion so as to properly invoke the Hague procedures. (§8).

¹ The Federal Council (*Bundesrat*, or *Conseil federal*) is the executive branch of Switzerland; its seven members serve as the collective head of state and government in Switzerland.

MSC respectfully submits this path directed by the Swiss Minister of Justice presents the proper way forward, and that a default judgment remains inappropriate for this reason and the other reasons stated in MSC's Response to the Order to Show Cause.

Respectfully submitted,

/s/ John Longstreth

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Counsel for Respondent

MSC Mediterranean Shipping Company S.A.

Dated: November 8, 2022

CERTIFICATE OF SERVICE

I certify that, on November 8, 2022, a true and correct copy of the foregoing Notice was served via electronic mail on the following:

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